

Dakshinanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat

High Court of Judicature at Allahabad · Single Judge · 19 May 2016 · Writ-C No. 23251 of 2016 · Writ-C No. 23251 of 2016 · **Stay of PLA award directing additional 25 KVA transformer; listed for disposal.**

HEADNOTE

The distribution licensee challenged a Permanent Lok Adalat award directing installation of an additional 25 KVA transformer for a 7.5 KVA tubewell. An existing 100 KVA transformer already served several consumers; admitted load was about 54 KVA. Clause 4.2 of the U.P. Electricity Supply Code, 2005 obliges enhancement only when load reaches 80% of installed capacity. Prima facie the award was illegal. Operation of the award dated 12.12.2015 was stayed; the writ was listed with connected Writ-C No. 23246 of 2016 after affidavits.

FACTUAL SUMMARY

Dakshinanchal Vidyut Vitran Nigam Ltd. challenged a Permanent Lok Adalat award dated 12 December 2015 directing it to install an additional 25 KVA transformer for respondent no. 2's 7.5 KVA tubewell. An existing 100 KVA transformer already supplied several consumers, including that tubewell. Admitted load on the transformer was 77.5 HP, about 54 KVA. The writ was connected with Writ-C No. 23246 of 2016 and listed after affidavits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.2

transformer capacity enhancement at 80% loading

HOLDING

Clause 4.2 of the U.P. Electricity Supply Code, 2005 obliges the licensee to extend transformer capacity if load increases to 80% of installed capacity. Where a 100 KVA transformer carries about 54 KVA (77.5 HP), the load is within existing capacity and the transformer need not be increased, strengthened, or replaced. Prima facie a Permanent Lok Adalat award directing installation of an additional 25 KVA transformer for a 7.5 KVA tubewell is illegal, and its operation is stayed pending disposal. ¶ 1

PRINCIPLE TAGS

no-retrospective-operation-of-supply-code-clause The distribution licensee challenged a Permanent Lok Adalat award directing installation of an additional 25 KVA transformer for a 7.5 KVA tubewell. An existing 100 KVA transformer already served several consumers; admitted load was about 54 KVA. Clause 4.2 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — FINAL LEGALITY OF THE PERMANENT LOK ADALAT AWARD

The Court recorded only a prima facie view, called for counter and rejoinder affidavits, and listed the writ with connected Writ-C No. 23246 of 2016 for admission/final disposal. ¶ 1